

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,  
AT PANJIM, GOA

Misc. Civil Application

In

Special Civil Suit No. /2013

Comunidade of Bambolim,  
A body constituted and functioning under  
the Code of Comunidades 1961,  
represented therein by their duly elected Attorney,  
having their office at  
Bambolim Church road,  
P. O. GMC Complex,  
Bambolim, Ilhas Goa -403202

...Plaintiff

V/s

1. Mrs. Dionisia Dias e Mergulhao,  
w/o late Maximo Mergulhao, housewife,  
Model Residency, Building No. 3,

Flat No. F4, First floor,  
St. Inez, Panaji, Tiswadi, Goa

2. M/s Raghurai Tamba,  
A registered partnership firm,  
through its partner Shri. Raghurai Tamba,  
major in age, Having its office at "Parimal"  
Altinho, Panaji-Goa
3. Mr. Raghurai Tamba,  
major in age, Businessman, r/o "Parimal"  
Altinho, Panaji-Goa
4. Mr. Gonsalo G. Dias Sapeco,  
Husband of late Luizinha Sebastiana Dias Sapeco,  
Major in age, r/o Bambolim, P. O. GMC Complex,  
Bambolim, Tiswadi-Goa
5. Mrs. Iria Lazarus,  
Major in age, r/o H. No. 1056,  
Primeiro Bairro, Santa Cruz,  
P. O. Santa Cruz, Tiswadi-Goa
6. Mr. R. Vasantha R. Krishnan,  
Major in age,  
c/o T. S. Varadarajan,  
Mormugao Port Trust/M/154B, Sada,  
Vasco-da-Gama,
7. Mr. Bernardo Fernandes,  
Major in age, r/o H. No. 814/2,  
Morgado, Goa Velha, Ilhas-Goa
8. Mr. Leonardo Fernandes,  
Major in age, r/o H. No. 814/2,  
Morgado, Goa Velha, Ilhas-Goa
9. Mr. Vishwanath V. Kamat,  
Major in age, r/o F-2, Kamat Nagar,  
Helidoro Salgado Road,  
Panaji-Goa
10. Mrs. Kamal V. Kamat,  
Major in age, r/o F-2, Kamat Nagar,  
Helidoro Salgado Road,  
Panaji-Goa
11. Mr. Vivek Pandurang Salunke,

Major in age, c/o Mr. Prakash Baburao Powar,  
r/o A7, Varuna Coop. Housing Society,  
Altinho, Panaji-Goa

12. Mr. Prakash Baburao Powar,  
Major in age, r/o A7,  
Varuna Coop. Housing Society,  
Altinho, Panaji-Goa

13. Mr. Anthony Borges Christopher Tucker  
Major in age, r/o H. No. 1108,  
Segundo Bairro, Santa Cruz, Ilhas, Goa

14. Mr. Walter Joseph Arthur Tucker,  
Major in age, r/o H. No. 1108,  
Segundo Bairro, Santa Cruz, Ilhas, Goa

15. Mr. Felix Mendes,  
Major in age, r/o Forgottem,  
Goa Velha, Ilhas-Goa

16. Mrs. Ana M. D'Souza  
Major in age, r/o Blanch House,  
Opp Old Power Housing,  
Baina, Vasco-da-gama

17. Mr. Sadat Abdur Rauf Xa Muzavor  
Major in age, r/o E-303, Opp Power Gira,  
Boca-da-Vaca, Panaji-Goa

18. Mrs. Artimizia Guilhermina Gonsalves  
Major in age, r/o 677, Dugrem,  
Agasaim-Goa

19. Mrs. Amita P. Kamat  
Major in age, r/o C/o Pradeep V. Kamat,  
Supravi, Neura, Ilhas-Goa

20. Mr. Agnelo Benny Braganza  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa

21. Mr. Glenn J. Kalavampara  
Major in age, r/o Aparna T-2, 3<sup>rd</sup> floor,  
Dr. Atmaram Borcar Road,  
Panaji-Goa

22. Mr. Mahableshwar M. Naik  
Major in age,  
r/o Valpoi, Sattari-Goa  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
23. Mrs. Surekha Suresh Salunke  
Major in age,  
r/o Valpoi, Sattari, Goa  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
24. Mr. Peregrino Gracias  
Major in age,  
r/o Siridao, Finguem Bhat,  
Tiswadi-Goa
25. Mr. Joel Albert Fernandes  
Major in age,  
r/o Villa "AMOR",  
Nagally Hills Colony,  
Dona Paula, Ilhas-Goa
26. Mr. Perpetuo Socorro Pires  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
27. Mr. Cosme Antonio Gracias  
Major in age, r/o Siridao,  
Finguem Bhat, Ilhas-Goa
28. Mrs. Ana Francisca Gracias  
Major in age, r/o Siridao,  
Finguem Bhat, Ilhas-Goa
29. Mr. John Cajetan Mascarenhas  
Major in age, r/o Men Rave 25,  
Lake View Colony, Miramar, Panaji-Goa
30. Mrs. Nubia Albina Mascarenhas  
Major in age, r/o Men Rave 25,  
Lake View Colony, Miramar, Panaji-Goa

31. Mr. Sebastiao E. J Coutinho  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
32. Mrs. Fatima Q Dias Coutinho  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
33. Mr. Agnelo Norberto Pereira de Araujo  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
34. Mr. Bosco D. Rodrigues,  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
35. Ms. Irene Apolonia Adeline Araujo  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
36. Esmeralda Afonso e Pouse Horta  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
37. Dominic Horta  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa
38. Mrs. Tulshi R. Gauns,  
Major in age, r/o 58,  
behind Bambolim Church,  
Bambolim, Ilhas -Goa

39. Mr. Khuku Raju Gauns,  
Major in age, r/o 58,  
behind Bambolim Church,  
Bambolim, Ilhas -Goa

40. Mr. Purshottam L. Carbotkar,  
Major in age,  
c/o. Mr. Raghurai Tamba,  
major in age, Businessman,  
r/o "Parimal" Altinho, Panaji-Goa .....Defendants

(Above addresses are registered  
addresses of parties)

**APPLICATION FOR TEMPORARY INJUNCTION UNDER  
ORDER 39 RULE 1 AND 2 OF CPC 1908**

**MAY IT PLEASE YOUR HONOUR**

The Plaintiff state and submit as under:-

1. The Plaintiff has filed today the suit for declaration of permanent injunction, and consequential relief's. The Plaintiffs crave leave of this Hon'ble court to rely upon each and every averment made there in plaint as if same are reproduced herein this application.
2. The plaintiff states that the subject matter of the present suit is the illegal acts of the defendants and the property of the plaintiff is being sought to be grabbed as their own. Thus causing loss and damage to the plaintiff. The defendant no. 1 is procuring various permissions and is attempting to start construction activities and the Defendants no.1 to 3 are attempting to sell the suit property belonging to plaintiff and fraud is played by the defendants in order to grab the suit property.
3. The plaintiff submits the defendant no. 1 to 40 or any person acting through them are not entitled to conduct any activities in the suit property. There is clear infringement of plaintiffs right and therefore the defendant no. 1 to 40 are required to be restrained by an order of temporary injunction restraining

the Defendants no.1 to 40 their agents servants or any other person from starting any development and construction activities or , changing the nature of suit property and alienating, transferring the suit property under survey no. 89/3, 90/1 of village Bambolim in any manner.

4. Due to the illegal acts of the defendants, irreparable loss and damage is caused to the plaintiff and the defendants are deriving the plaintiffs the plaintiffs property. That by misrepresentation the defendant no. 1 to 3 have got the sale deed executed and is trying to develop and sell the suit property. Therefore the plaintiff is entitled to stop all the activities.
5. The plaintiff states that during the pendency and final disposal of the present suit, the plaintiff is entitled for interim temporary injunction in the aforesaid terms, for which the plaintiff is filing present application.
6. The plaintiffs state that the cause of action to file the present suit arose on 29/3/2012 when the Hon'ble High Court observed that the parties should approach Civil Court and after investigation it is found that there is fraud played on the Comunidade by defendant no. 1 to 3. It is settled principle of law that the fraud vitiate all the action and documents. Hence the suit is not barred by limitation as stated above. The plaintiff submits that the Comunidade is managed by the elected managing committee and has to file the proceedings. The present Managing committee was elected and took charge in March 2013. After that the Managing committee took legal advice and made investigation. In view of observation of the Hon'ble High Court in judgment dt. 29/3/2013 in Writ Petition No. 506/2009, 557/2009, 577/2009 and 657/2011 and after details examination of the documents it is found that there is fraud played on the plaintiff by collusion with the person claiming to be tenants of the Comunidade by defendant no. 1 to 3 and the property of the Comunidade has been allowed to be taken away without following due process of law and causing loss to the Comunidade.

7. The Plaintiff submits that irreparable loss and prejudice shall be caused to the plaintiff if the reliefs prayed are not granted. Plaintiffs state that they have made out prima facie case and that the balance of convenience is in her favour. No prejudice whatsoever will be caused to the defendants if the temporary injunction is granted to the plaintiff.
8. The plaintiff has not taken out any other proceedings in this Hon'ble Court, Hon'ble High Court, Supreme Court or any other court in respect of the subject matter of this suit. However civil suit no.66/2009 filed by B. B. A D'Souza and another before Honorable District Court and Miscellaneous Civil Application No. 6/2010/B and Special Civil Suit No. 52/2013 filed by the Plaintiff is pending before this Honorable Court. The plaintiff has not filed any other suit on the same cause of action and subject matter/prayers made in this suit.
9. The suit property is located at Village Bambolim, Tiswadi Taluka which is within the jurisdiction of this Court and therefore this Court has jurisdiction to entertain and try the present suit.
10. The applicant shall rely upon documents, a list whereof is annexed to the plaint for the purpose of deciding present application.
11. For the purpose of service, the addresses of the plaintiffs and defendants is as per the memo of addresses annexed hereto.
12. The plaintiff has not received any caveat from the defendants ..
13. The Plaintiffs therefore prays:
  - a) That pending the hearing and final disposal of the suit this Hon'ble Court may be pleased to pass an order of temporary injunction restraining the Defendants no.1 to 40 their agents servants or any other person from starting any development and construction activities or changing the nature of suit property and alienating, transferring the suit

property under survey no. 89/3, 90/1 of village Bambolim in any manner.

- b) For an ex parte order in terms of prayer (a)
- c) Any other order this Hon'ble Court deem fit and proper.

Place: Panaji, Goa.

Dated: 30<sup>th</sup> December, 2013

PLAINTIFF

ADVOCATE FOR THE PLAINTIFF

VERIFICATION

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby solemnly verify and state that contents of paragraph 1 to 7 of the above application are based on the records of the Comunidade to which I have access and I believe the same to be true and the contents of Paragraph 8 to 13 are in the nature of legal submissions based on legal advice which I believe to be true.

Solemnly affirmed at Panaji-Goa,

On this 30<sup>th</sup> December, 2013

DEPONENT

Identified by me;-

Advocate for the plaintiff.

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,  
AT PANJIM, GOA

Misc. Civil Application

In

Special Civil Suit No. /2013

Comunidade of Bambolim, ...Plaintiff

V/s

1. Mrs. Dionisia Dias e Mergulhao,  
And others .....Defendants

**AFFIDAVIT**

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church Road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby on solemn oath and affirmation states and submit as under:-

1. I am duly elected attorney of comunidade of bambolim and I have authority to file the present suit and application for temporary injunction on behalf of the plaintiff. I say that the plaintiff has filed a suit for Declaration, permanent injunction, and consequential reliefs along with application for temporary injunction in this Hon'ble Court.

2. I say that I have read the accompanying Plaint understood the same. The contents therefore are as per the records of the comunidade to which I have access. I say that contents of paragraph 1 to 7 of the above application are based on the records of the Comunidade to which I have access and I believe the same to be true and the contents of Paragraph 8 to

13 are in the nature of legal submissions based on legal advice which I believe to be true

3. I say that I affirm the facts set out in the Plaint as if the same are incorporated herein for the purpose of this affidavit to avoid repetition.
4. I say that the annexures to the suit are true copies of the original/certified copies.
5. I say that fraud is played on the plaintiff by the defendant as stated in the plaint. I say that the prayers in the plaint and application may be granted otherwise irreparable loss and prejudice shall cause to the plaintiff.
6. I say that the contents of the paragraphs 1 to 4 herein above are true and correct to my own knowledge.

Solemnly affirmed at Panaji, Goa.

On 30<sup>th</sup> day of December, 2013

DEPONENT

Identified by me;

ADVOCATE FOR THE PLAINTIFF